

CONTRACT NO. 5450

**AMENDMENT TO THE HUMAN SERVICES AGREEMENT BETWEEN
THE CITY OF CHEYENNE AND PEAK WELLNESS CENTER, INC.**

This amendment to Contract No. 5450, between the City of Cheyenne and Peak Wellness Center, Inc., is made and entered on the _____ day of _____, 2010, due to the availability of 2007-2010 1% Sales Tax funds allocated for fiscal year 2010-2011.

Paragraph 3, Fees, of Contract No. 5450, reads as follows:

3. FEES: The City agrees to pay Contractor a total amount not to exceed Twenty-Seven Thousand Dollars (\$27,000.00) per year for the services set forth in Appendix A upon acceptance of performance by the City. Payment is to be made in one lump sum each year on or before the 15th day of December, 2009 and 2010. If the scope of the Program changes, amendments to this Agreement shall be in writing.

Payment by the City to the Contractor for the services performed under the terms and conditions of this Agreement is contingent upon the availability of the City funds which are appropriated and allocated for payment of such obligation. The City shall notify the Contractor at the earliest possible time of any such shortage or depletion of funds.

Due to the shortage of City funds, the payment for FY 2010-2011 will be reduced by \$11,996.59. The new funded amount will be \$15,003.41, which payment is to be made in one lump sum on or before the 15th of December, 2010.

Except as modified by this amendment, all other provisions of Contract No. 5450 shall remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto have affixed their signatures to this amendment.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

PEAK WELLNESS CENTER, INC.

BY:

Director